

TRUST AGREEMENT

Net Income with Makeup Charitable Remainder Unitrust

AGREEMENT SUMMARY

Donors:	Erik J. Sorensen and Maria T. Sorensen
Trustee:	National Christian Charitable Foundation, Inc.
Agreement Date:	April 10, 2024
Trust Type:	NIMCRUT per IRC Section 664(d)(2)/(3)
Duration:	for the joint and survivor lives of both Donors
Remainder Beneficiary:	Mayo Clinic Foundation
Jurisdiction:	State of Minnesota

1. TRUST ESTABLISHMENT

Erik J. Sorensen and Maria T. Sorensen (the "Donors") irrevocably transfer to National Christian Charitable Foundation, Inc. ("Trustee") assets valued at \$8,100,000 to establish this Net Income with Makeup Charitable Remainder Unitrust, effective April 10, 2024.

2. INCOME DISTRIBUTIONS

The Trustee shall distribute annually to the Donors (jointly, with survivorship) the lesser of Trust net income or 5.8% of Trust net asset value. Estimated first-year target distribution: \$469,800. In years where net income exceeds the unitrust percentage, excess is paid to reduce any accumulated makeup deficit. Distributions are quarterly.

3. TERM AND REMAINDER

The Trust continues for the joint and survivor lives of both Donors. Upon the death of the surviving Donor, all remaining assets pass to Mayo Clinic Foundation.

4. INVESTMENT POLICY

The Trustee will manage the \$8,100,000 portfolio using a growth-oriented allocation appropriate for the NIMCRUT structure, which permits deferral of income in early years to maximize long-term compounding. Target allocation: 70% equity, 20% fixed income, 10% alternatives. The Trustee may deviate based on market conditions.

5. TRUSTEE POWERS AND COMPENSATION

The Trustee possesses full discretionary authority over Trust investments and administration, including but not limited to: buying, selling, and exchanging assets; borrowing against Trust property; settling claims; retaining specialists; making tax elections; and voting proxies.

Annual trustee compensation: 0.65% of net asset value, calculated quarterly. Based on the initial contribution of \$8,100,000, the first-year fee is estimated at \$52,650. This fee covers portfolio management, tax reporting (Form 5227 and K-1s), quarterly statements, and beneficiary communications. Extraordinary fees (real estate closings, litigation defense, IRS examinations) are billed separately at cost.

The Trustee may resign upon 90 days written notice. A successor must be a Section 501(c)(3) organization. The Trustee is not liable for investment losses absent gross negligence or willful misconduct.

6. TAX AND LEGAL PROVISIONS

This Trust qualifies under IRC 664(d)(2)/(3). Self-dealing (4941), excess holdings (4943), jeopardizing investments (4944), and taxable expenditures (4945) are prohibited. Governed by Minnesota law. Spendthrift protections apply. This Agreement is the entire understanding between the parties.

APPENDIX: FEE SCHEDULE

Trust Asset Value	Annual Rate	Minimum Annual Fee
First \$5,000,000	0.75%	\$15,000
\$5,000,001 - \$10,000,000	0.65%	N/A (blended)
Over \$10,000,000	0.50%	N/A (blended)

Blended rate for this Trust (\$8,100,000): 0.65% = \$52,650/year

Executed April 10, 2024.

Erik J. Sorensen

Maria T. Sorensen

NCCF, Inc., Trustee